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File No.: EXP202203929

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 25/03/2022, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant), against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

“Listening and video surveillance cameras with 360° rotation located on private terraces focusing and recording all types of images in communal areas and public roads. These violate and invade the privacy and intimacy of passersby and other neighbors as their placement is not authorized.

Prior to this complaint, we notified such neighbors without obtaining a withdrawal of their action.

Burofax issued on February 3. (...)”

Attached is photographic evidence of the location of the video surveillance cameras and the areas they would be capturing.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 07/04/2022, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was delivered on 20/04/2022. Due to the lack of response, it was reiterated on 07/06/2022, resulting in “Returned to sender due to unclaimed (not picked up at office)” on 27/06/2022.

THIRD: On 25/06/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

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FOURTH: On 24/10/2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the GDPR.

FIFTH: On 29/11/2022, the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution.

In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following

facts to be proven in this procedure,

PROVEN FACTS

FIRST: Existence of two white video surveillance cameras on the exterior of the respondent's residence oriented towards communal areas of the Homeowners' Community and public roads. This fact is proven by the photographic evidence provided by the complainant.

SECOND: B.B.B. with NIF ***NIF.1 is identified as the main responsible for the video surveillance system.

THIRD: This Agency has notified the respondent of the initiation agreement of the present sanctioning procedure, but no allegations or evidence contradicting the reported facts have been presented.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each authority by Article 58.2 of the GDPR, 3/11

control and in accordance with the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

III

Data minimization

The processing of personal data is subject to the principles listed in Article 5 of the GDPR. In this regard, paragraph c) of the aforementioned provision includes the principle of "data minimization" under which "personal data shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

For its part, Article 22 of the LOPDGDD includes specific rules for the processing of data for surveillance purposes and states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous paragraph.

However, it will be possible to capture images of public roads to a greater extent when necessary to ensure the security of strategic property or facilities or infrastructures related to transportation, without in any case allowing the capture of images from within a private home.

3. The data shall be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that violate the integrity of persons, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time knowledge of the existence of the recording is obtained.

The obligation to block provided for in Article 32 of this organic law shall not apply to these treatments.

4. The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at a minimum, the

existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device.

In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties.

5. Under Article 2.2.c) of Regulation (EU) 2016/679, the processing by a natural person of images that only capture the interior of their own home is considered excluded from its scope of application.

This exclusion does not cover processing carried out by a private security entity that has been contracted to monitor a home and has access to the images.

6. The processing of personal data obtained from images and sounds captured through the use of cameras and video cameras by the Security Forces and Bodies and by the competent authorities for monitoring and control in penitentiary centers and for the control, regulation, monitoring, and discipline of traffic shall be governed by the legislation transposing Directive (EU) 2016/680, when the processing has the purposes of prevention, investigation, detection, or prosecution of criminal offenses or enforcement of criminal sanctions, including protection and prevention against threats to public safety. Outside of these cases, such processing shall be governed by its specific legislation and, subsidiarily, by Regulation (EU) 2016/679 and this organic law.

7. The provisions of this article are understood without prejudice to what is provided in Law 5/2014, of April 4, on Private Security and its implementing provisions.

8. The processing by the employer of data obtained through camera or video camera systems is subject to the provisions of Article 89 of this organic law.”

In the present case, after examining the photographic report submitted by the complaining party, two white devices are observed on the exterior of the dwelling of the complained party. One of them is on the balcony facing common areas of the Community of Owners and the public road; and the other is on the wall of the lower terrace of the property pointing outward. Although it is true that the terrace has a canvas, it is made of a transparent material that would not prevent the capture of common areas. Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure and which has not been refuted.

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During the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the claimed party, of Article 5.1.c) of the GDPR.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The obtained images may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the

GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time the existence of the recording is known.

6.- The data controller must maintain a record of processing activities carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, assess them, and, where necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood to be the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the controller regarding the personal data processing they carry out, and, where appropriate, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Classification of the infringement of Article 5.1.c) of the GDPR

The aforementioned infringement of Article 5.1.c) of the GDPR constitutes the commission of the infringement classified in Article 83.5.a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

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"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)

In this regard, the LOPDGDD, in its Article 71 "Violations" establishes that "Acts and behaviors referred

to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute violations.”

For the purposes of the statute of limitations, Article 72 “Violations considered very serious” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, violations that constitute a substantial breach of the articles mentioned therein are considered very serious and shall be subject to a three-year statute of limitations, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679; (...)”

VI

Sanction for the violation of Article 5.1.c) of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the authority to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

In this case, it is deemed appropriate to sanction the respondent for the violation of Article 5.1.c) of the GDPR for which it is responsible, by imposing an administrative fine that must be individual, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Furthermore, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76,

“Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

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- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
 - e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
 - f) The impact on the rights of minors.
 - g) To have, when not mandatory, a data protection officer.
 - h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.
- The balance of the circumstances considered, regarding the infringement committed by violating what is established in Article 5.1.c) of the GDPR, allows for the imposition of a fine of €300 (three hundred euros).

VII

Imposition of Measures

Under the provisions of Article 58.2 d) of the GDPR, the responding party is ordered to, within ten working days from the date on which this resolution is notified to them, prove:

- That they have proceeded to remove the cameras that result in excessive capture, or prove the regularization of the same in accordance with current regulations.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, a fine of €300 (three hundred euros).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, to, within ten working days from the notification of the resolution of this sanctioning procedure, prove to this agency:

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- That they have proceeded to remove the cameras that result in excessive capture, or prove the regularization of the same in accordance with current regulations.

THIRD: TO NOTIFY this resolution to B.B.B.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection

will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the appeal

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Administrative Litigation within a period of two months from the day following the notification of this resolution, would conclude the precautionary suspension.

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